

STATE OF NEW YORK

6078--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 26, 2025

Introduced by M. of A. HUNTER -- read once and referred to the Committee on Children and Families -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law, in relation to allowing child day care providers an extension of time to make necessary changes or accommodations to their facility to meet licensing requirements

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (d) of subdivision 2 of section 390 of the social
2 services law is amended by adding a new subparagraph (iii) to read as
3 follows:

4 (iii) If the office of children and family services determines, after
5 the completion of an inspection of a child day care provider's facility
6 pursuant to subparagraph (i) of this paragraph, that such day care
7 provider does not meet the necessary licensing requirements because such
8 facility requires necessary changes or accommodations, the office of
9 children and family services shall extend the ninety-day period set
10 forth in 18 NYCRR 414.2(c) to allow such day care provider to correct or
11 make any required necessary changes without having to restart the
12 licensing process from the initial application submission. After an
13 initial extension has been provided pursuant to this section, the office
14 of children and family services shall have the authority to grant addi-
15 tional extensions of time as necessary.

16 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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